competence as the only criteria for staffing. But expertise in a post-Communist context is often a code word for experts of a certain political affiliation, while the political persuasion of other civil servants is publicly exposed and frowned upon, as noted by the critics.[179]

The same goes for the judiciary, which was at the centre of attention for Kaczyński and also Orbán, and earned Poland numerous reprimands by the European Commission and also cases in the Court of the EU. The Article 7 case was triggered against both countries. A special Rule of Law mechanism was also designed at the Council of the EU level to monitor the Rule of Law situation in all EU countries, but Poland and Hungary have been its main targets. Within this mechanism, Slovenia during the two-year mandate of Prime Minister Janša also received some unwanted attention and criticism. However, the European Commission's Rule of Law reports appear to have failed to account for a deep-seated belief across the centre-right electorate in Slovenia (and elsewhere) that the judiciary is far from the ideal of an independent and unbiased institution. This part of the electorate believes, rightly or wrongly, that the judiciary is stuffed not with Janša's loyalists, but with left-wingers, affiliated with the network of old-boys from the Communist past. The capture of state institutions is here believed to have been made by left-wing populists and conspirators, not by right-wing populists and social conservatives. Such a view may be wrong or exaggerated, but the problem is that it does not receive proper attention by the drafters of the Commission's reports whatsoever. Could it then, after all, be that some of Law and Justice's accusations against the Polish judiciary have indeed been correct? Sadurski dismisses this notion and traces the legislative actions by Law and Justice governments to their populist, anti-establishment character. But still, could it be that institutions of the system in post-Communist countries, and their resistance to change, have indeed been marked by the remnants of the Communist past? This possibility was also discarded almost immediately by the European Commission and Western Governments, the latter only having an experience of anti-establishment forces coming from the radical right (and to a lesser extent the radical left). Current Polish and Hungarian governments (and the short-lived governments of Janez Janša in Slovenia) proved incapable of presenting a better argument for that case, or perhaps lacked legitimacy for that. In Slovenia, the 2020-2022 cabinet of Mr Janša tried in vain to point